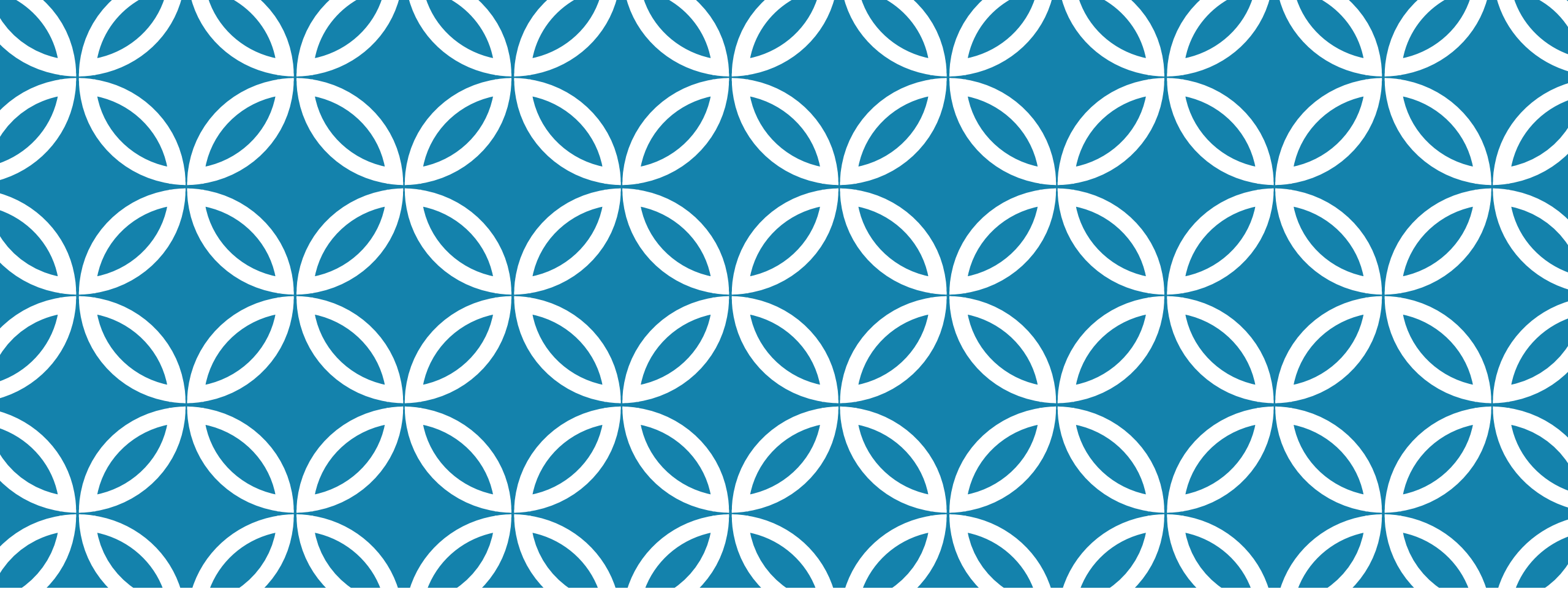




PUBP309: EDUCATION POLICY

Child Labour in India – Debates and Policy

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Child Labour in Different Sectors of India

AGRICULTURAL LABOUR

Census of India 2011 suggests that the employment of children as agricultural laborers emerge as the **largest category**.

According to a study conducted by DRMU:

- Majority of workers in the cotton fields were below the age of **18 years** (**78.8 percent**) and at least 31 percent were below the age of 14.*
- The **working hours** were the same for all workers, ranging from 8 to 12 hours.*
- Children reported being paid a sum of **Rs 50 for a day's work**.*
- Wages were paid at the **end of the work period** and not on a daily or monthly basis.*

MANUFACTURING INDUSTRY- GARMENT INDUSTRY

In small, owner-operated enterprises or home based forming the non-factory and unorganized sector of the garment industry.

Save the children's report on the garment industry in Delhi (2015) found:

- Poor working conditions of children
- Exposure to risks and hazards like loud noise, poor lighting, poor ventilation and sharp tools.
- Long hours of work.
- Complains of back pain, poor posture and deteriorating eyesight.
- Children mostly work in households (87%), are poorly paid and receive no benefits and with 36 percent of those working at home not paid at all.



Different themes in Child Labour

SEASONAL CHILD LABOUR

Beedi and cigarette making

Construction including brick kilns

Domestic workers

Spinning and weaving

Characteristics:

- Employment ranges from 3 to 8 months.
- Many of these children who work in these industries are invisible.
- Data from NGOs show that many of the children who are enrolled into schools are involved in seasonal child labour. It has been also noted that there are a number of children who are not enrolled in schools and are also not part of the child work force.

CHILD LABOUR & GENDER

Girls work participation rate: 6.29 %

Boys within male work force: 4.32 %

Comparative analysis of child labour (2001 to 2011) by Child Rights and You (CRY) in 2015:

- 53 % increase in child labour in urban India.
- Drop of about 29 % in rural areas.

CHILD LABOUR & EDUCATION

Save the Children research from a project in cotton fields:

- Children who combine school and work are likely to **underperform** at school and are more likely to drop out of school.

Young Lives India study (2015):

- 12-year-olds who spend three hours or more on **household chores** in a day are 70% less likely to **complete secondary education** and 65.5% of children aged 12 who spent three hours or more attending domestic chores dropped out from the schools.

CHILD LABOUR & FAMILY ENTERPRISES

It has been seen that involvement of children in family based enterprises may sometimes violate children's rights .

Example: Moradabad City is also known as **Peetal Nagri** or the city of brassware, where families are traditionally engaged in making brassware.

- Child labour in Moradabad has to be understood in terms of these two forces: the demand of the family to preserve a tradition and the market forces that has made the family dependent on it.
- World Vision of India Research study:
 - 80,000 to 96,000** child workers in the industry.
 - Highest concentration at the **6-11 age group** is in polishing, followed by scraping, fanning the moulding furnace and electroplating.

CHILD LABOUR & ECONOMY

Might increase the **household income** in the short run.

In the long run it might perpetuate household poverty.

Furthermore, child labour competes with the wages of the adults creating an environment of **low wages and unemployment** among adults and affecting the growth of the economy.

Rehabilitation and **livelihood support** to parents of the children involved in child labour needs attention in the programmes of the government.

A holistic child rights approach has to be adopted to address issues such as prevention, development, protection and participation of children with a special focus on girl children.



Suggestions

SUGGESTIONS

Legislative Reforms:

- Correspond to the Right to Free and Compulsory Education Act 2009, which provides for free and compulsory education for all up to the age of 14.
- For 15 – 18 year old, work should be strictly regulated and only permitted in a decent work environment.
- Securing livelihoods to the parents of children engage in labour should be an integral part to the strategy of eliminating child labour.

SUGGESTIONS

Strengthening social protection, minimum wages and access to decent work for adults

- **Minimum wages** need to be guaranteed for adults, as does access to decent work so that they can earn their livelihood and are not forced to send their children to work.
- Evidence from Save the Children Programming shows that if adults are **empowered to claim their rights** and entitlements, and access the benefits of schemes such as the MNREGS, ICDS and other cash transfer schemes they are less likely to send their children to work.
- Social protection systems should prioritize and focus on the needs of special and **most vulnerable children** like CWD (children with disability) and OVC (orphan vulnerable children).

SUGGESTIONS

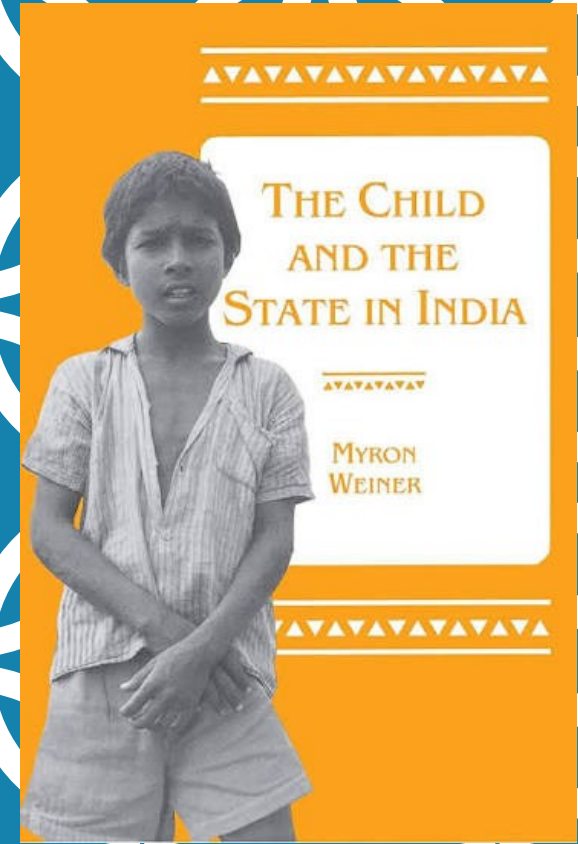
Improving early childhood care and protection and access to quality and relevant education:

- With a focus on **Early Childhood Care and Development (ECCD)** we call for supportive family and community care practices, ensuring proper nutrition and health care and learning opportunities.
- Free and quality education** is a vital right for children and is central to their development.
- India has not attained the **MDG goal 2** of achieving universal primary education and came close to 90% despite progressive acts on education for children

SUGGESTIONS

Improving skills and vocational training for children:

- Children or adolescents between the **age of 15 -18** are a group who require skills and training to be able to engage in **decent work** and to prevent working in hazardous and exploitative environments.
- Proper **skills training**, whether through schools or skills programmes will serve the dual purpose of preserving some of our traditional arts and crafts
- Give them the opportunity to experience **different types of learning**, both theoretical and practical, and empower them to have an improved quality of life as adults.



CHILD LABOUR AND COMPULSORY EDUCATION POLICIES

Evolution of Child Labour Legislation, Debates Within Child Labour Laws, the CWC Bill, ILO's Conventions on Child Labour, Rajiv Gandhi's National Policy on Education, Compulsory Education Initiatives

Aayush Agarwal

EVOLUTION OF CHILD LABOUR LEGISLATION IN INDIA

- Indian Factories Act (1881), its Amendment (1922): set age limits
- Indian Mines Act (1923): set minimum age for employment in mines as 13
- Employment of Children Act (1938): regulated employment of children in specific sectors of the economy
- Factories Act (1948): restricted number of continuous hours
- Plantations Labour Act (1951), Mines Act (1952), Factories Act (1954): all specified ages of employment
- Beedi and Cigar Workers Act (1966): prohibited employment of under-14 children in any Beedi factory
- In 1979, GOI appointed Committee on Child Labour to review existing legislation, marked a shift in child labour policies in India

THE GREAT INDIAN CHILD LABOUR POLICY DEBATE

- One Side: Govt. should take steps to enforce the many laws that prohibit employment of children
- Other Side: Existing socioeconomic conditions make enforcement unrealistic, govt. Should instead ameliorate conditions of work

Acknowledgements of the 1979 Committee:

1. **Problems of Poverty: prohibition of child labour will close supplementing incomes for poor families**
2. **Problems of Administration: lack of strategy to implement laws, “social reform needs to be practical”**

1938 Planning Minister S. B. Chavan: Banning child labour was *“not feasible due to the prevailing socio-economic constraints and exigencies.”*

REPORT OF CONCERNED FOR WORKING CHILDREN (CWC) SEMINAR

- Final report made distinction between **"child work" which should be regulated** and **"exploitation of child work" which should be prohibited**. Protect the working child and provide for the working child's education. Faulted the mainstream education system, supported proposals for non-formal education.
- GOI drafted a Bill based upon the report

Opposition to Bill based on CWC report:

1. Dr. Neera Burra: failure to include new hazardous occupations, hazardous work exempt if it's part of family labour, existing laws haven't been enforced, why would this one?
2. Dr. Walter Fernandes: proposed legislation would legitimize govt's decision not to enforce existing child labour laws in hazardous industries

However, within the government, **overwhelming sentiment across all ministries in support of the new initiative.**

INTERNATIONAL LABOUR ORGANIZATION'S ROLE

- ILO Conference: supported the Indian Bill for developing countries, even though the legislation seemed to violate ILO conventions on child labour
- Kurt Herndl's four issues

ILO's Conventions on Child Labour:

1. 1919: First Minimum Age Convention (minimum age of 14)
2. Subsequent conventions regulating age and conditions of work
3. 1979: International Year of the Child
4. 1973: Minimum Age Convention (15 as minimum)

Officials in ILO, UNICEF, WHO, and UNHRC mainly emphasize need for govts to end worst forms of exploitation and also ameliorate conditions of working children rather than press for abolition. Educational opportunities also needed to be expanded.

RAJIV GANDHI'S NEW NATIONAL POLICY ON EDUCATION (1985)

Objectives under new policy and its critique

- 'Educational restructuring': universalizing elementary education, reducing dropout rate, creating network of model schools in every district, new technologies in school
- Ministry's report acknowledged govt's own failure to carry out reforms and targets set by earlier education commissions
- Greeted with skepticism regarding Navodaya Vidyalayas: elitist?

Operation Blackboard: 1 billion Rupees allocated for basic amenities in village schools

Non-formal education: targeted to meet the needs of working children. Intended clientele for NFE laid out in report of Working Group on Universalisation of Elementary Education (1977)

Flexible curriculum, children move at their own pace, NGOs help plan the curriculum.

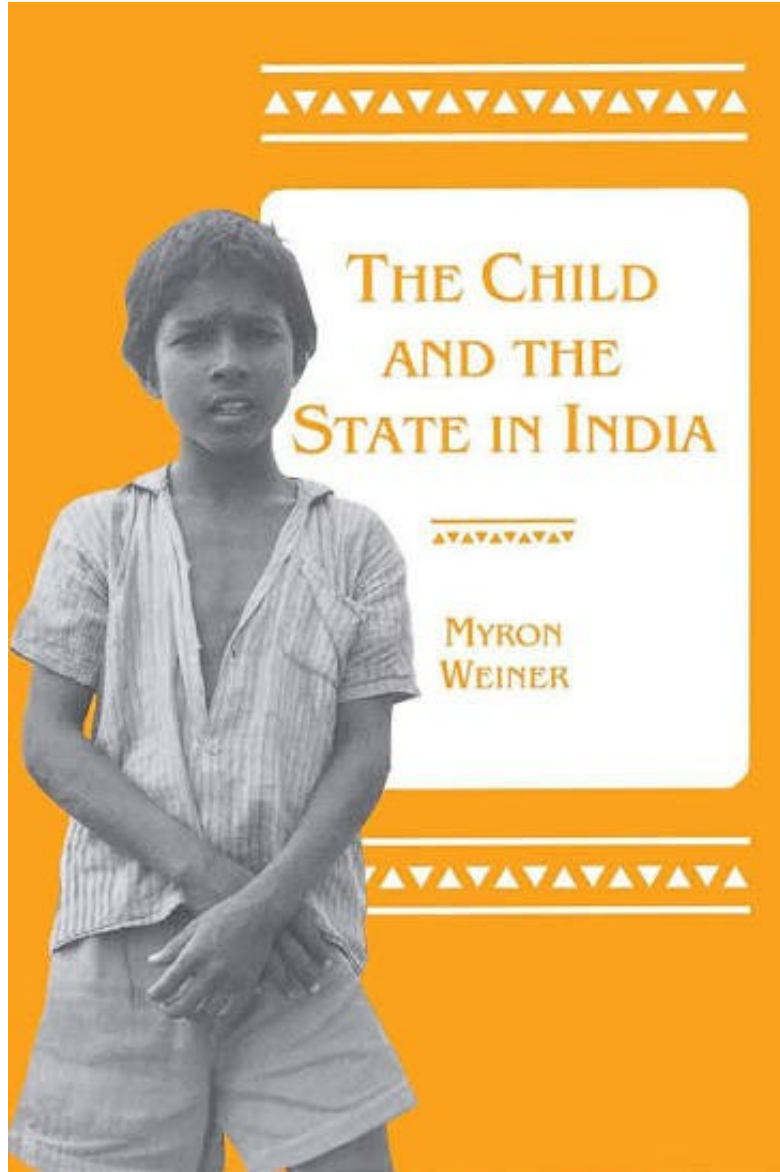
FURTHER COMPULSORY EDUCATION INITIATIVES; GANDHI'S PROPOSAL

- National laws did not make education compulsory, they merely establish conditions under which state govts can make education compulsory.
- Examples of state initiatives: Assam, Tamil Nadu, Mysore, Baroda

However, illiteracy remained at a near constant rate due to:

- Low investment in primary education before independence
- Absence of primary schools in most of the country
- High dropout rate
- Absence of any proper system of compulsory education

Gandhi's proposal: **Scheme for Basic Education** (1937): “education should be self-supporting”, “literacy is not the end of education”, handicraft production by students that will support the school financially, no universal education compulsion



DIALOGUES ON EDUCATION

Ankitha Kammaje

Some teachers were charging parents ten rupees a month for not reporting that their children were not in school! How could a poor man send his son to school when he needs him to care for his cattle?

The education system has educated them to become clerks. We think that if we go to school we should have white-collar jobs. There is no regard for manual labour in our education system. So these educated sons have become an anti-social element now.

I don't think the standard of education is better in private than in public education. But in the private schools the approach of the staff to the parents is more personal...The teachers in the government school are indifferent. They have their unions and they do not think about academics.

The greatest difficulty with the children from the slums is that they don't know how to ask a question. They don't raise their hands. They haven't learned the 'formal' language that you need in school, and those who don't learn that language drop out

SPEAKERS

Education Officials

Mrs.Ella Bhatt, Founder- SEWA and former MP

Jayashree Mehta, Educator

Mr.Gordhanbhai, Former Secretary of Primary Education-Gujarat

Dr. V.G. Kulkarni, Physicist turned Educational Researcher

“ I explained that my understanding was that the state legislation is modeled after the British parliamentary act of 1870, which says that local authorities are *permitted* to write rules re-quiring parents to send their children to school and setting penalties for those who fail to do so. A decade later, in 1880, the British Parliament passed legislation *requiring* local authorities to make education mandatory. I hadn't seen all the state legislation in India, but none that I had seen made it mandatory upon local authorities to establish compulsory education”
(Weiner,56)

Technical issues with the legislation that was issued



“The schools do not build character nor are they able to prepare the children for self-employment. Teachers should be sympathetic to children and teach them what is relevant. But what is the situation?”

-Mrs. Ela Bhatt (Weiner, 59)



PROBLEMS IN EDUCATION

- **Incompetent schools**
- **Lack of Vocational Training**
- **Formal schooling not adding to employment prospects**
- **“Child Labour” in India, does not constitute supporting the family**
- **Access**
- **“Indifference” of teachers**



FURTHER CONSTRAINTS

- **Unreliable data**
- **Pushouts v/s Dropouts**
- **Elegant Language v/s actual implementation**
- **Lack of clear technical frameworks to understand trends**



REFERENCE

Weiner, Myron. *The Child and The State in India*. Princeton University Press. 1990